

		Plaintiffs are ordered to give notice, including to the LWDA, and to file a proof of service.
2	Cabuto v. Impact Housing US, LLC 2024-01427671	<u>Plaintiff's Motion for Preliminary Approval of Class Action and PAGA Settlement</u> The court has reviewed and considered the papers, including the supplemental papers, filed in support of plaintiff's motion for preliminary approval of a \$492,500 class action and PAGA settlement. Subject to plaintiff's submission of the documents identified below, the court grants the motion as follows: \$147,750.00 for attorneys' fees (not to exceed); \$20,000.00 for attorneys' costs (not to exceed); \$7,990.00 for settlement administration fees (not to exceed); and \$20,000.00 total PAGA penalties (\$13,000.00 to LWDA). Plaintiff is ordered to file and serve <u>by August 20, 2026</u> a revised proposed order (stating the above amounts) <u>with all exhibits attached</u> (settlement agreement; amendment thereto, notice packet (in English and Spanish)). The not-to-exceed amount of attorneys' fees stated in the notice and the proposed order should be revised to state the above not-to-exceed amount of attorneys' fees. The final approval hearing is scheduled for <u>December 17, 2026 at 2:00 p.m.</u> in Department CX105. The motion for final approval shall be filed at least 16 court days before the hearing. See Department CX105 Guidelines for Approval of Class Action Settlements and PAGA Settlements (www.occourts.org). Plaintiff is ordered to give notice, including to the LWDA, and to file a proof of service.
3	Clark v. Windsail Capital Group, LLC 2021-01191735	<u>Plaintiffs Growthpoint Global, Inc. and Preston Clark's Motion to Strike to Tax Costs Claimed by Arthur Cohen</u> Plaintiffs Growthpoint Global, Inc. and Preston Clark move to strike or tax costs claimed by Arthur Cohen. Cohen did not file an opposition. For the following reasons, plaintiffs' unopposed motion is granted. In his cross-complaint (filed May 7, 2021), Cohen asserted various claims against Clark and Growthpoint, among others. ROA 216. In his first amended complaint (filed October 4, 2021), Clark asserted various claims against Cohen. ROA 366. Clark dismissed his claims against Cohen without prejudice on May 5, 2022. ROA 711. Clark and Growthpoint did not name Cohen as a party in the operative third amended complaint. ROA 1478. Following a bench trial, as to plaintiffs' claims in the third amended complaint, the court entered judgment on March 12, 2026 in favor of defendants Windsail Credit Fund, L.P., Windsail Capital Fund, L.P., Windsail Capital Group, LLC, Windsail GP, LLC, Crate Modular, Inc., Michael Rand, Matthew O'Rourke and James Pickell. ROA

3366. As to Cohen's third amended cross-complaint (ROA 1645), the court entered judgment in favor of cross-defendants Windsail Capital Fund, L.P., Windsail Capital Group, LLC, Windsail GP, LLC, Crate Modular, Inc., Pickell, Growthpoint and Clark. ROA 3366. The judgment states: "Cohen shall take nothing as against Growthpoint or Clark." ROA 3366.

Cohen seeks \$3,259.80 in costs. ROA 3376. While the parties against whom Cohen seeks costs are not entirely clear from Cohen's costs memorandum, as plaintiffs move to strike or tax Cohen's claimed costs, the court gathers Cohen seeks reimbursement of his claimed costs from plaintiffs.

Plaintiffs argue Cohen's costs memorandum should be stricken because Cohen is not a prevailing party and because he filed the costs memorandum too late. Plaintiffs also argue Cohen did not provide any evidentiary support for the claimed costs and that the costs for which Cohen seeks reimbursement are improper.

A prevailing party is usually entitled as a matter of right to recover costs in any action or proceeding. Civ. Proc. Code § 1032(b). Growthpoint did not assert any claims against Cohen and Cohen did not prevail on his claims against Growthpoint. The court accordingly discerns no basis on which Cohen could be deemed a prevailing party against Growthpoint. Cohen did not file an opposition and thus has not identified such basis.

Cohen also did not prevail on his claims against Clark. As to Clark's claims against Cohen, Clark dismissed his claims against Cohen on May 5, 2022. ROA 711. Cohen's costs memorandum was due 15 days after service on May 5, 2022 of notice of entry of that dismissal. ROA 711; *Sanabria v. Embrey* (2001) 92 Cal.App.4th 422, 426 ("If notice of entry of dismissal is served, a dismissed defendant claiming costs must serve and file a memorandum of costs within 15 days after 'the date of service of written notice of entry of . . . dismissal'"); Cal. R. Ct. 3.1700(a)(1). "The time provisions relating to the filing of a memorandum of costs, while not jurisdictional, are mandatory." *Hydratec, Inc. v. Sun Valley 260 Orchard & Vineyard Co.* (1990) 223 Cal.App.3d 924, 929. Cohen did not file his costs memorandum until March 24, 2026; the costs memorandum was therefore untimely.

Plaintiffs to give notice.

Plaintiffs Growthpoint Global, Inc. and Preston Clark's Motion to Strike to Tax Costs Claimed by Keith Henderson

Plaintiffs Growthpoint Global, Inc. and Preston Clark move to strike or tax costs claimed by Keith Henderson. Cohen did not file an opposition. For the following reasons, plaintiffs' unopposed motion is granted.

In his first amended complaint (filed October 4, 2021), Clark asserted various claims against Henderson. ROA 366. Clark dismissed his claims against Henderson without prejudice on April 8, 2022. ROA 603. Clark and Growthpoint did not name

		Henderson as a party in the operative third amended complaint. ROA 1478. Following a bench trial, as to plaintiffs' claims in the third amended complaint, the court entered judgment on March 12, 2026 in favor of defendants Windsail Credit Fund, L.P., Windsail Capital Fund, L.P., Windsail Capital Group, LLC, Windsail GP, LLC, Crate Modular, Inc., Michael Rand, Matthew O'Rourke and James Pickell. ROA 3366. Henderson seeks \$709.58 in costs. ROA 3380. While the parties against whom Henderson seeks costs are not entirely clear from Henderson's costs memorandum, as plaintiffs move to strike or tax Henderson's claimed costs, the court gathers Henderson seeks reimbursement of his claimed costs from plaintiffs. Plaintiffs argue Henderson's costs memorandum should be stricken because Henderson is not a prevailing party and because he filed the costs memorandum too late. Plaintiffs also argue Henderson did not provide any evidentiary support for the claimed costs. A prevailing party is usually entitled as a matter of right to recover costs in any action or proceeding. Civ. Proc. Code § 1032(b). Growthpoint did not assert any claims against Henderson. The court accordingly discerns no basis on which Henderson could be deemed a prevailing party against Growthpoint. Henderson did not file an opposition and thus has not identified such basis. As to Clark's claims against Henderson, Clark dismissed his claims against Henderson on April 8, 2022. ROA 603. Henderson's costs memorandum was due 15 days after service of notice of entry of that dismissal. ROA 603; <i>Sanabria v. Embrey</i> (2001) 92 Cal.App.4th 422, 426 ("If notice of entry of dismissal is served, a dismissed defendant claiming costs must serve and file a memorandum of costs within 15 days after 'the date of service of written notice of entry of . . . dismissal'"); Cal. R. Ct. 3.1700(a)(1). "The time provisions relating to the filing of a memorandum of costs, while not jurisdictional, are mandatory." <i>Hydratec, Inc. v. Sun Valley 260 Orchard & Vineyard Co.</i> (1990) 223 Cal.App.3d 924, 929. Henderson did not file his costs memorandum until March 27, 2026; the costs memorandum was therefore untimely. Plaintiffs to give notice.
	Pickell v. Growthpoint Global, Inc. 2023-01355444	Off calendar.
4	Contreras v. Mercial, LLC 2021-01214079	<u>Plaintiffs' Motion for Final Approval of Class Action and PAGA Settlement</u> The court has reviewed and considered the papers, including the supplemental papers, filed in support of plaintiffs' motion for final approval of a \$3,725,000 class action and PAGA settlement. The court grants the motion as follows: